

**BEFORE THE
FEDERAL MARITIME COMMISSION**

FRANCIS SHEKA KANU	)	
	)	
Complainant,	)	DOCKET NO. 25-05
	)	
v.	)	
	)	
EJIKE DICKSON EZE d/b/a EJIKE	)	
INTERNATIONAL TRADE LIMITED,	)	
SEALINES INTERNATIONAL, SEAMATES	)	
INTERNATIONAL, INC., and MAERSK	)	
	)	
Respondents.	)	

MAERSK'S ANSWER TO COMPLAINT

Defendant MAERSK A/S (hereinafter referred to as "MAERSK"), by its attorneys, George W. Wright & Associates, LLC, answers the Complaint, as follows:

1. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "I" of the Complaint.
2. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "II (a)" of the Complaint.
3. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "II (b)" of the Complaint.
4. Denies the allegations in paragraph "III" of the Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.
5. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "IV (a)" of the Complaint.
6. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "IV (B)" of the Complaint.

7. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (C)” of the Complaint.

8. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (D)” of the Complaint.

9. Admits that MAERSK acted as an ocean carrier with respect to the subject container; but except as so specifically admitted, denies knowledge or information as to the other allegations in paragraph “IV (E)” of the Complaint.

10. Admits that MAERSK acted as an ocean carrier with respect to the subject container; but except as so specifically admitted, denies the other allegations in paragraph “IV (F)” of the Complaint.

11. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV(G)” of the Complaint.

12. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (H)” of the Complaint.

13. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (I)” of the Complaint.

14. Admits that MAERSK issued Bill of Lading No. 212399527, dated September 8, 2021, and issued certain documents for the release of the shipment at the port of Freetown, Sierra Leone; but except as so specifically admitted, denies knowledge or information as to the other allegations in paragraph “IV (J)” of the Complaint.

15. Admits payment; but except as so specifically admitted, denies knowledge or information as to the other allegations in paragraph “IV (K)” of the Complaint.

16. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (L)” of the Complaint.

17. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (M)” of the Complaint.

18. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV(N)” of the Complaint.

19. Admits that MAERSK has not re-exported the container from Congo to Sierra Leone; but except as so specifically admitted, denies knowledge or information sufficient to form a belief as to the other allegations in paragraph “IV (O)” of the Complaint.

20. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (P)” and defers all questions of law to the Commission.

21. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (P) (1)” and defers all questions of law to the Commission.

22. Denies the allegations in paragraph “IV (P)(1)(a)” insofar as they relate to MAERSK and defers all questions of law to the Commission.

23. Denies the allegations in paragraph “IV (P) (1) (b)” insofar as they relate to MAERSK and defers all questions of law to the Commission.

24. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (P) (1) (c)” insofar as they relate to MAERSK and defers all questions of law to the Commission.

25. Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “IV (P) (2) (a)” insofar as they relate to MAERSK and defers all questions of law to the Commission.

26. Denies the allegations in paragraph “IV (P) (2) (b)” insofar as they relate to MAERSK and defers all questions of law to the Commission.

27. Denies the allegations in paragraph "IV (P) (3)" insofar as they relate to MAERSK and defers all questions of law to the Commission.

28. Denies the allegations in paragraph "IV (P) (3) (a)" insofar as they relate to MAERSK and defers all questions of law to the Commission.

29. Denies the allegations in paragraph "IV (P) (3) (b)" insofar as they relate to MAERSK and defers all questions of law to the Commission

30. Denies the allegations in paragraph "IV (P) (3) (c)" insofar as they relate to MAERSK and defers all questions of law to the Commission.

31. Denies the allegations in paragraph "IV (P) (4)" insofar as they relate to MAERSK and defers all questions of law to the Commission.

32. Denies the allegations in paragraph "Q" insofar as they relate to MAERSK and defers all questions of law to the Commission.

FIRST AFFIRMATIVE DEFENSE

The Commission lacks subject jurisdiction over this action which involves claims against MAERSK arising from and relating to an alleged breach of an ocean Bill of Lading contract.

SECOND AFFIRMATIVE DEFENSE

The Complaint fails to state a claim against MAERSK on which relief may be granted.

THIRD AFFIRMATIVE DEFENSE

MAERSK breached no contractual or other legal duty to Complainant.

FOURTH AFFIRMATIVE DEFENSE

The goods described in the Complaint were transported by MAERSK subject to the terms, conditions, exceptions and limitations of MAERSK's governing Bill of Lading and Tariffs, including, but not limited to claim and suit-filing periods and limitations of liability.

FIFTH AFFIRMATIVE DEFENSE

The Complainant is a "Merchant" within the meaning of MAERSK's governing Bill of Lading and Tariffs and is subject to their terms, conditions, exceptions and limitations.

SIXTH AFFIRMATIVE DEFENSE

All claims against MAERSK are barred by the Complainant's lack of contractual privity with MAERSK

SEVENTH AFFIRMATIVE DEFENSE

All claims against MAERSK are barred by the direct purchaser doctrine.

EIGHTH AFFIRMATIVE DEFENSE

All claims against MAERSK are barred by the "Q" Clause of the Carriage of Goods by Sea Act of 1936 ("COGSA").

NINTH AFFIRMATIVE DEFENSE

MAERSK has no liability for any loss caused by arrest or restraint of princes, rulers, or people or seizure under legal process.

TENTH AFFIRMATIVE DEFENSE

MAERSK has no liability for any loss caused by an act, neglect, or default of the master, mariner, pilot, or the servants of the carrier in the navigation or in the management of this ship

ELEVENTH AFFIRMATIVE DEFENSE

MAERSK's alleged liability which is denied, is limited under COGSA to \$500.00 per package or per customary freight unit.

TWELFTH AFFIRMATIVE DEFENSE

The Complaint fails to allege facts establishing unjust and unreasonable practices by MAERSK on a normal, customary and continuous basis within the meaning of 46 U.S.C. Sec. 41102 (c) and 46 C.F.R. § 545.4 (b).

THIRTEENTH AFFIRMATIVE DEFENSE

MAERSK is not liable to the Complainant for special or consequential damages such as loss of use, loss of revenue, lost profits, additional costs and the like. To the extent any damages sought by Complainant constitute special or consequential damages, MAERSK is not liable for them.

FOURTEENTH AFFIRMATIVE DEFENSE

MAERSK is not liable for any unreasonable charges paid by the Complainant to other parties.

WHEREFORE, Respondent MAERSK A/S demands judgment dismissing the Complaint with prejudice and for such other and further relief as the Commission may deem just and proper.

Dated: September 12, 2025

GEORGE W. WRIGHT & ASSOCIATES, LLC

By: /s/ George W. Wright
GEORGE W. WRIGHT
Attorneys for Respondent
MAERSK A/S
505 Main Street, Suite 106
Hackensack, NJ 07601

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12th day of September, 2025, the foregoing Answer to Complaint was served as follows:

- (1) Via Regular Mail, fax, and email sent to Complainant Mr. Francis Sheka Kanu at
6042 The Plaza, Charlotte, NC 28215, Fax No. 704-535-8872 and
francesgats@bellsouth.net.
- (2) Via Regular Mail and email to Respondent Ejike Dickson Eze
d/b/a Ejike International Trade Limited
1000 Montana Drive
Charlotte, NC 28216
(ejikeinternational89@gmail.com)
- (3) John Greco, Esq.
BETANCOURT, GRECO & EVANS LLC
Counsel for Respondents
SEALINES INTERNATIONAL and
SEAMATES INTERNATIONAL, INC.
151 Bodman Place- Suite 200
Red Bank, New Jersey 07701
(732) 530-4646
(jgreco@bge-law.com)

/s/ George W. Wright
GEORGE W. WRIGHT